

M/s Pawan Putra Floor Mill v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 1 April 2014 · WRIT - C No. - 18805 of 2014 · **Writ disposed; relegated to Executive Engineer under 4.9 r/w 6.5.**

HEADNOTE

A writ seeking reconnection after accidental damage to an electricity pole was disposed of without a merits grant. The High Court held that pole reinstallation and disputed bills and arrears are to be raised before the competent authority under clause 4.9 read with clause 6.5 of the Electricity Supply Code, 2005, and directed the Executive Engineer to decide within two months of a certified copy.

FACTUAL SUMMARY

M/s Pawan Putra Floor Mill, through proprietor Shyam Sunder, and another petitioner sought a writ against Dakshinanchal Vidyut Vitran Nigam for reconnection of electricity supply. They alleged that supply had been disconnected after an electricity pole was damaged accidentally. The dispute also concerned reinstallation of the pole and bills and arrears claimed by the licensee. The Power Corporation was represented before the Division Bench.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

pole reinstallation after accidental damage

HOLDING

A consumer grievance of disconnection after accidental damage to an electricity pole, including reinstallation of the pole, can be redressed by approaching the competent authority under clause 4.9 of the Electricity Supply Code, 2005, read with clause 6.5; the Executive Engineer shall decide the matter within two months of production of a certified copy of the order. ¶ 1

HOLDING-UNIT · UP-2005::6.5

disputed bills and arrears

HOLDING

Disputed bills and arrears arising with a reconnection or pole-reinstallation grievance are to be taken to the competent authority under clause 6.5 of the Electricity Supply Code, 2005, read with clause 4.9; the Executive Engineer shall decide within two months. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUPPLY SHOULD BE RECONNECTED, THE POLE REINSTALLED, OR THE DISPUTED BILLS AND ARREARS REVISED

Writ disposed by relegating the consumer to the Executive Engineer under clauses 4.9 and 6.5; no merits determination. ¶ 1